

SENATE BILL 386

By Taylor

AN ACT to amend Tennessee Code Annotated, Title 16;
Title 37 and Title 49, relative to student behavior.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by adding the following as a new section:

(a) This section is known and may be cited as the "Early Behavioral Intervention and Reporting Act."

(b) As used in this section, "early warning signs" means evidence of a student's safety, health, or behavioral issues and includes, but is not limited to, indicators of a student engaging in or being the victim of harassment, intimidation, bullying, or cyber-bullying; making or receiving threats of violence; and exhibiting signs of substance abuse, mental health issues, self-harm, or suicidal ideation.

(c) Each LEA and public charter school shall implement a computer-based system that teachers and school staff must use to input data of early warning signs demonstrated by students enrolled in the LEA or public charter school. Each LEA and public charter school shall ensure that each teacher and school staff member is trained to identify early warning signs and on how to input data into the computer-based system.

(d) The computer-based system implemented pursuant to subsection (c) must:

(1) Align with the requirements in § 49-6-4503; the School Discipline Act, compiled in part 41 of this chapter; and the school safety plans adopted by the LEA or public charter school pursuant to the Schools Against Violence in Education (SAVE) Act, compiled in part 8 of this chapter;

(2) Include a database that is capable of receiving and maintaining student data entered by teachers and school staff on the early warning signs demonstrated by its students; and

(3) Immediately notify the LEA's or public charter school's personnel serving on the LEA's or public charter school's threat assessment team created pursuant to § 49-6-2701 when an early warning sign is entered into the system for a student.

(e) The LEA or public charter school personnel receiving a notification of an early warning sign of a student pursuant to subdivision (d)(3) shall review the notification, and any notifications of the student previously received, and determine whether further action is needed to address the student's behavior of an early warning sign.

(f) Each LEA and public charter school shall annually submit a report to the department of education summarizing the data collected in the immediately preceding school year and the interventions provided, if any.

(g) Reports made pursuant to this section must comply with the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g); § 10-7-504; the Data Accessibility, Transparency, and Accountability Act, compiled in chapter 1, part 7 of this title; and all other relevant privacy laws.

(h) If the commissioner of education finds that an LEA or public charter school is not complying with this section, then the commissioner may withhold state funds, in an amount determined by the commissioner, from the LEA or public charter school until the LEA or public charter school is in compliance with this section.

SECTION 2. Tennessee Code Annotated, Section 49-6-2701, is amended by adding "and public charter school" after "Each LEA", adding "or public charter school" after "LEA"

wherever it appears in the section, adding "or public charter school's" after "LEA's" in subsection (b), adding "or public charter school governing body" after "local board of education" in subsection (e), and adding "or the director of the public charter school" after "the director of schools" in subsection (e).

SECTION 3. Tennessee Code Annotated, Section 49-6-2702(b), is amended by adding "or public charter school" after "LEA" and adding "or public charter school's" after "LEA's".

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.